

613.)

Here, the Court finds that the amount of \$75,000 is appropriate, especially in light of the fact that should Plaintiffs be successful in their lawsuit, it would not appear that the Sellers, from one perspective the initial victims of Builder, would end up responsible for a majority of the costs to repair the Property. The Sellers are a retired couple who lived in the home until 2021, who believed the disclosures provided during the sale were truthful, are not themselves builders, contractors, or construction professionals, and had no role in the construction of the home. (Dennis Czarnecki Decl. ISO Opposition, ¶¶ 2-4; Maureen Czarnecki Decl. ISO Opposition, ¶¶ 2-4.) Builder, in contrast, is a developer and may have statutory liability pursuant to the California Right to Repair Act (Civil Code §§ 895 et seq.). With respect to the second factor, the amount paid in settlement, \$75,000, appears appropriate in light of the settlement occurring prior to Plaintiffs even filing the instant lawsuit, especially in consideration of the fact that this amount reflects a risk adjusted exposure rather than the theoretical maximum possible recovery.

Regarding the third factor, the allocation of settlement proceeds, the Court references to its reasoning above in that since the settlement did not include an allocation, it need not be discussed here, especially in light of the acceptability of a post-verdict allocation.

The fourth *Tech-Bilt* factor, a recognition that a settlor should pay less in settlement than he would if he were liable at trial, certainly weighs in favor of a finding of good faith.

The fifth *Tech-Bilt* factor is to consider the financial conditions and insurance policy limits of settling defendants. Here, the undisputed evidence shows that Sellers have no insurance and are retirees living primarily on fixed income and that in order to pay the settlement they had to utilize retirement assets. (Dennis Czarnecki Decl. ISO Opposition, ¶¶ 8-10; Maureen Czarnecki Decl. ISO Opposition, ¶¶ 8-9, 11.) This factor weighs in favor of finding the settlement to be in good faith.

Finally, the sixth factor, “the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants” (*Tech-Bilt, supra*, 38 Cal.3d at 499), weighs in favor of finding a good faith settlement, as the only evidence submitted on this issue shows there was no improper collusion, fraud, or the like. (Dennis Czarnecki Decl. ISO Opposition, ¶¶ 6-7; Maureen Czarnecki Decl. ISO Opposition, ¶¶ 5-7.) The settlement was reached through mediation with a retired judge and appears to be the product of arm’s length negotiation. (*Id.* ¶ 6.) The Court notes that Builder has supplied no evidence on this factor. As per the analysis above, the *Tech-Bilt* factors weigh in favor of finding the settlement between Sellers and Plaintiffs to have been made in good faith.

Ruling on Motion to Contest Application for Approval of Good Faith Settlement

“The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499-500.) Here, Builder has failed to meet this burden and the Court thus **denies** the instant Motion. The Court finds that the \$75,000 settlement between Plaintiffs and Sellers is a good faith settlement and declines to make any rulings regarding allocation at this time.

11. 9:00 AM CASE NUMBER: C25-01753

CASE NAME: HAROLD KUSHINS VS. JAY UTAL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WALKER, KENNETH

TENTATIVE RULING:

Defendant Kenneth Walker's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure (CCP) § 430.41. The Court continues the demurrer hearing on its own motion to **9:00 a.m., Friday, March 20, 2026, in Department 32.**

The Court reminds the parties that pursuant to CCP § 430.41(a) they are required to discuss the alleged deficiencies with the complaint in person, by telephone or by video conference before each and every demurrer or motion to strike. As the court noted in *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3:

[T]rial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

Defendant Kenneth Walker shall file a CCP § 430.41 meet and confer declaration by **Friday, March 6, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." (CCP § 430.41, subd. (a).)

12. 9:00 AM CASE NUMBER: MSC17-01486

CASE NAME: DOSKOCZ VS. ALS

***ENFORCEMENT OF JUDGMENT**

FILED BY:

TENTATIVE RULING:

The court orders all parties to appear at hearing.
Zoom appearance is acceptable and even preferred.

13. 9:00 AM CASE NUMBER: MSC19-01240

CASE NAME: SONNENSHEIN VS PACIFIC UNION

HEARING ON SUMMARY MOTION ADJUDICATION

FILED BY: SONNENSHEIN, STACEY

TENTATIVE RULING:

Before the Court is a motion by plaintiffs for summary adjudication against defendant Pacific Union International, Inc. on an issue of duty under Civil Code section 1088(b). For the reasons set forth, the motion is **denied without prejudice** as stated below.